
Trump's "It Could Be Worse" Strategy Is in Full Effect

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[*Sign up for the Surge*](#), the newsletter that covers the most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, which is happy to report that it has nothing to say about any insecure men who might commandeer national airwaves on a Thursday night to spread conspiratorial nonsense.

The politics were hot and heavy this week. Lindsey Graham is no longer with us, but his signature legislation of this Congress has never been more alive. House Democrats went on the record against the Israeli government in a way they never have before. We check in on the Michigan and Maine Senate races, and consider the nature of time.

Let's begin, though, with a pair of major confirmation hearings in the Senate this week.

1.

Todd Blanche and Jay Clayton

Skating by on the doctrine of "it could be someone worse."

The Senate held two critical confirmation hearings on the same day this week. Acting Attorney General Todd Blanche appeared before the Judiciary Committee to secure the gig officially, while Jay Clayton appeared before the Intelligence Committee in his bid to be director of national intelligence. Let's review what we have in these two.

Blanche, in taking a brief break from his efforts to lock up President Donald Trump's political appointments, recently oversaw the phony settlement of a phony case that raided the Treasury for \$1.8 billion to disburse to goons who participated in Jan. 6 (while also giving Trump and his family immunity from any IRS investigation). It was one of the biggest scandals of either Trump term, and the only consequence Blanche faced was a promotion. In his hearing, Blanche said he "is" Trump's lawyer, before catching himself to say he "was" Trump's lawyer. No correction was needed.

Clayton—Trump's U.S. attorney for the Southern District of New York—just last weekend [subpoenaed](#) New York Times journalists who had reported on security concerns with Trump's fresh new Air Force One gifted from the Qataris. He humiliated himself in his confirmation hearing on a question that Trump appointees frequently stumble over: Who won the 2020 election? He wouldn't give a [direct answer](#) to numerous Democrats who asked the question.

And yet the nomination of neither appears to be in major doubt. Maybe commitments need to be made to a Thom Tillis here, a John Cornyn there. But they're both likely to get through. Why? Due to fear of the alternative. Consider the argument from former Trump AG William Barr, who Trump now hates, urging senators to confirm Blanche. Rejecting Blanche "wouldn't force the president to make a better choice," Barr [wrote](#) in the Wall Street Journal. "It will simply invite more chaos and a

less desirable appointment.” And the nomination of Clayton, similarly, should get through because Republicans and Democrats want the acting director, Bill Pulte, out of there. This is all it takes to win Senate appointment in Trump’s second term: Are you better than whatever fantastical manifestation of malevolence Trump could conjure as an alternative? You’re in.

2.

Lindsey Graham

One last legislative push.

We weren’t sure whether to write about the late senator in this entry or retire an entry in his honor, so frequently was he a subject of this newsletter. But rather than make an accounting of his career—you can [find those here](#)—let’s talk about his final project. Just a day or two before his death, Graham announced in Kiev that he’d finally made a deal with the White House on his major legislative effort of this Congress: sanctions legislation against Russia, which he believed could finally bring President Vladimir Putin to the bargaining table.

The initial bill from last year, which Graham spearheaded alongside Connecticut Sen. Richard Blumenthal, would have imposed secondary sanctions in the form of crushing tariffs on countries that imported Russian oil and gas. The new version softens those penalties and limits them to the five biggest importers (likely including China and India), along with other sanctions. The newer version does, however, give the White House more authority to waive the oil-and-gas importer penalties if it sees fit. That could allow Putin to preserve his greatest stalling tactic: charming Donald Trump out of doing anything too drastic.

This is a bill that will pass if it comes to a vote. The question is how big a priority it is for both the Senate majority leader and the White House. Well, Graham, for better or worse, didn’t have any problems with speaking indelicately about legislative matters so we won’t either: Graham’s allies on this issue will use his death to push for a vote, as a means of honoring him. No doubt, that’s exactly what he’d want them to do.

3.

Thomas Massie

A Republican forces a watershed moment on Democrats.

In a rare moment in which the rogue Republican did something his own leadership would have approved of, Rep. Thomas Massie offered an amendment to an appropriations bill this week that would cut off U.S. military aid to Israel. Even just a few years ago, the idea of such a bill getting more than a dozen or so votes in Congress would have been laughable. But much has changed in the last few years, with Democratic voters largely turning against Israel during the Gaza war. So

when the amendment vote was held Thursday, a slim majority of Democrats—103 to 98—voted for Massie’s amendment, while 10 Democrats with commitment issues voted present. All Republicans [except for Massie](#) voted against it.

We’re not sure so many Democrats would have voted this way if the amendment had any chance of becoming law, as its drafting would have had [unintended consequences](#). But it’s nevertheless a historic protest vote that crystallizes Democrats’ shifting—well, already shifted—view on Israel. The roll call also revealed some rare splits between members of Democratic leadership, present *and* past. Minority Leader Hakeem Jeffries voted against it, while Minority Whip Katherine Clark voted for it. Among the old guard, former Speaker Nancy Pelosi ([reluctantly](#)) voted for the amendment while her former deputies, Reps. Steny Hoyer and Jim Clyburn, voted against it. Jeffries, in a [letter](#) to his caucus, did say that “moving forward, it is my strongly held view that for the good of Israel and the Palestinian people, American policy in the Middle East must change.” How hard he’s willing to push for that change will be an interesting story to follow should his speakership ever materialize.

4.

Haley Stevens

We may have a race in Michigan after all.

It seemed a sure thing a few weeks ago that Abdul El-Sayed, the insurgent progressive challenger in Michigan’s Democratic Senate primary, was leading the race going away. But in the past two weeks, a couple of reputable pollsters have shown his establishment opponent, Rep. Haley Stevens, narrowly ahead. Backed by a coalition of non-college-educated, older, and Black voters, Stevens led a [poll](#) sponsored by the Detroit News by 7 points this week. Then again, a Data for Progress poll—sponsored by a pro-El-Sayed super PAC—showed El-Sayed leading Stevens by 13. By doing some advanced statistical work here called “a rough average of two numbers,” the Surge has determined that the race may well be close.

You wouldn’t expect a close race if you’ve only watched Stevens getting [roasted on social media](#) for her stage presence. So how might this have happened? First, Stevens’ allies—namely, AIPAC’s super PAC—have been absolutely hammering El-Sayed on the airwaves, as well as running *questionable* pro-Stevens ads [implying](#) that Barack Obama has endorsed her, which he hasn’t. Meanwhile, polling since the third candidate, Mallory McMorrow, dropped out suggests that Stevens has been the larger beneficiary of her support. The one element that we’re curious about, but which is hard to quantify, is whether there’s been a flight-to-safety mentality among undecided voters after watching the Maine campaign of Graham Platner, another progressive insurgent, blow up in such spectacular fashion. El-Sayed is not Platner; he’s been in electoral politics for nearly a decade and has a polished résumé. But for all Democratic voters’ talk about wanting a new breed of candidate who will *fight*, it often doesn’t take much for traditional “electability” anxiety to set in. The Stevens campaign, in fact, is relying on it.

5.

Susan Collins

An ICE fiasco.

Part of Susan Collins' survival strategy is to use what power she has to keep hot-button national issues out of Maine as much as she possibly can. When Immigration and Customs Enforcement surged agents to the state earlier this year under the jocularly named "Operation Catch of the Day," for example, Collins urged then-DHS Secretary Kristi Noem to stand down. Whether because of Collins' pressure or not, the operation didn't last long.

This week, ICE shot and killed 25-year-old Johan Sebastián Durán Guerrero in Biddeford, Maine, in an incident [about which there is still much to learn](#). A [protest](#) at Collins' Biddeford office ensued not long afterward. She's taken heat for having supported Republicans' recent party-line \$70 billion funding bill of immigration enforcement, and an incident like this thrusts the issue back into the spotlight. Collins called for investigations of the incident, and noted that she had supported some small measures in the recent bill, such as funding for body cameras and de-escalation training. But the agency to which that money was transferred apparently didn't get these ICE agents to wear body cameras, and it doesn't seem to have a particularly effective de-escalation curriculum. Those funding bills for ICE *did*, however, pay these officers' salaries. It's been easy to forget over the past several weeks, as Maine Democrats have melted down on a national stage, that Collins has a long autumn's worth of explaining ahead of her.

6.

Big Sunshine

The Florida sun lobby is making their move.

Permanent DST is a pet political project of Florida. Being so far south, Florida's sunrises wouldn't be *too* late in the winter months under permanent DST, while its longer winter afternoons would allow residents and tourists (\$\$\$) to enjoy outdoor activities longer. Florida Rep. Vern Buchanan introduced the House bill, and its senators and our [Florida Man president](#) are strong supporters. So, will this go anywhere in the Senate? We're skeptical. While another version of this *did* pass the Senate in 2022, it kind of did so by ... mistake. Then-Sen. Marco Rubio passed it by unanimous consent because its opponents miscommunicated about who would lodge the objection to it. Arkansas Sen. Tom Cotton [took blame](#) for that SNAFU this week, but warned he wouldn't let it happen again. And if it can't pass by unanimous consent, we're skeptical the Senate would spend valuable floor time trying to pass it on its own.

7.

Gabriel Perez

To be fair, knowing Trump's prepared remarks doesn't tell you much about what he'll say.

One of the odder things we've chosen to do as a society is allow anyone to bet on anything the government or public officials do, greatly expanding avenues for those in or close to the government to partake in insider trading. This is, as best we can tell, what hell looks like from a handbasket. Don't worry, though: The administration is on the case. ABC News first [reported](#) this week that Gabriel Perez, a longtime teleprompter operator for the president, is in talks with federal regulators to settle after allegedly betting on Kalshi on what Trump would say in his speeches. He has reportedly won more than \$100,000 doing so.

Not to say that we'd defend such behavior, but there are people *with more senior positions* in the Trump administration who are participating in corrupt practices on a significantly grander scale than the guy trying to secure cash for a home down payment.

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